

		paid to the aggrieved employees, and the other amounts distributed under the settlement, including any uncashed checks. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
11	Singh v. Dr. Smoothie Enterprises, LLC 2025-01495408	Off calendar.
12	People of State of California v. Jivalagian 2026-01543442	<u>Plaintiff People of the State of California’s Renewed Motion to Stay Civil Action Pending Resolution of Criminal Investigations and Actions</u> Plaintiff People of the State of California (People) move to stay this case for one year. The court denied the People’s virtually identical motion five months ago. 4/16/26 Order (ROA 59); <i>see also</i> 2/11/26 Order (ROA 29). The court assumes the parties’ familiarity with the April 16, 2026 order, and incorporates that order herein by this reference. For the following reasons, the People’s renewed motion to stay is denied. “A party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” Civ. Proc. Code § 1008(b). Despite reproducing entire sections of the prior brief and declaration verbatim, the People do not acknowledge the prior motion or the court’s April 16, 2026 order, and have made no effort to comply with section 1008(b). Thus, as the instant motion again seeks an order staying this action, but the declaration filed with the motion does not state “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown,” the motion is denied. That the People now seek an order staying the action for one year, and previously sought an order staying the action for an unspecified time period, does not render section 1008(b) inapplicable, as the order the People seek—an order staying the action—is the same. Even if section 1008(b) does not apply, however, the motion is still denied. The motion and its accompanying declaration have not remedied the deficiencies in the People’s showing identified in the court’s April 16, 2026 order. Neither the brief nor the Herzog Declaration addresses all of the issues identified in the order, and, as with the prior George Declaration, the portions of the Herzog declaration on which the People rely are nonspecific and conclusory (e.g., Herzog Decl. (ROA 69) ¶ 12). As to the <i>Keating</i> factor addressing case management and efficient use of judicial resources (which, of course, is only one of several factors considered in the

		stay analysis), setting forth a general list of discovery devices (Herzog Decl. (ROA 69) ¶¶ 13-14) is not a substitute for a specific factual showing that discovery in this action would duplicate discovery potentially at issue in a potential criminal case against defendants. See 4/16/26 Order at 4. The People are ordered to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed September 10, 2026 (ROA 90), and based thereon continues the September 17, 2026 status conference to <u>January 21, 2027 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. The joint status conference statement need only apprise the court of material developments in the ensuing period. Clerk to give notice.
13	Varela v. American Addiction Centers, Inc. 2023-01366667	<u>Plaintiff Steve Varela's Motion for Leave to File First Amended Complaint</u> Plaintiff Steve Varela moves for leave to file a first amended complaint to add a PAGA claim and a cause of action for violation of Labor Code section 246. Seventy-nine days after filing his motion, plaintiff filed a "supplemental" brief in which he seeks leave to amend his complaint to add a second plaintiff. For the following reasons, plaintiff's motion for leave to file a first amended complaint to add a PAGA claim and a cause of action for violation of section 246 is granted, and plaintiff's "supplemental" request for leave to amend his complaint to add a second plaintiff is denied. Civil Procedure Code section 473 permits the trial court in its discretion to allow amendments to pleadings in the furtherance of justice. <i>Hulsey v. Koehler</i> (1990) 218 Cal.App.3d 1150, 1159. Ordinarily, courts should exercise liberality in permitting amendments at any stage of the proceeding. <i>Id.</i> California Rule of Court 3.1324 states, in relevant part: (a) Contents of motion A motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.